

24STCV01333 24STCV01333

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Case Number: 24STCV01333 Hearing Date: August 14, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

14, 2026 TRIAL DATE: September 14, 2026

CASE: Cynthia Ramirez v. Prestige Media Group, Inc.

CASE NO.: 24STCV01333

PLAINTIFF'S

MOTION FOR TERMINATING SANCTIONS AGAINST ALL DEFENDANTS

MOVING PARTY: Plaintiff

Cynthia Ramirez

RESPONDING PARTY: Defendant Prestige Media Group, Inc.

I. INTRODUCTION

On May 21 and June 11, 2026, Plaintiff, Cynthia Ramirez, filed motions to compel defendant Prestige Media Group, Inc. ("PMG") to appear for deposition and to produce its owners, individual defendants Alexandra Vershinina ("Vershinina") and Sergey Vershinin ("Vershinin"), to appear for deposition.

On

July 21, 2026, the court granted Plaintiff's motions and ordered Defendants to appear for deposition within 15 days of the court's order.

On July 24, 2026, Plaintiff filed this motion for terminating sanctions.

On August 7, 2026, PMG
filed an untimely opposition.[1]

On August
10, 2026, Plaintiff filed a reply.

II. LEGAL STANDARD

Under Code of Civil Procedure section 2023.030, the court has discretion to impose sanctions against anyone engaging in a misuse of the discovery process. Misuse of the discovery process includes failure to respond to an authorized method of discovery or disobeying a court order to provide discovery. (Code Civ. Proc., § 2023.010(d), (g).) A court may impose terminating sanctions by striking pleadings of the party engaged in misuse of discovery or entering default judgment. (Code Civ. Proc., § 2023.030(d).) A violation of a discovery order is sufficient for the imposition of terminating sanctions. (Collison & Kaplan v. Hartunian (1994) 21 Cal.App.4th 1611, 1620.) Terminating sanctions are appropriate when a party persists in disobeying the court's orders. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 795-796.)

The court should consider the totality of the circumstances, including conduct of the party to determine if the actions were willful, the detriment to the propounding party, and the number of formal and informal attempts to obtain discovery. (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.) If a lesser sanction fails to curb abuse, a greater sanction is warranted. (Van Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.) However, "the unsuccessful imposition of a lesser sanction is not an absolute prerequisite to the utilization of the ultimate sanction." (Deyo, at p. 787.)

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Before any sanctions may be imposed the court must make an express finding that there has been a willful failure of the party to serve the required answers. (Fairfield v. Superior Court for Los Angeles County (1966) 246 Cal.App.2d 113, 118.) Lack of diligence may be deemed willful where the party understood its obligation, had the ability to comply, and failed to comply. (Deyo, at p. 787; Fred Howland Co. v. Superior Court of Los Angeles County (1966) 244 Cal.App.2d 605, 610-11.) The party who failed to comply with discovery obligations has the burden of showing that the failure was not willful. (Deyo, at p. 788; Cornwall v. Santa Monica Dairy Co. (1977) 66 Cal.App.3d 250; Evid. Code, §§ 500, 605.)~~~~~

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A terminating sanction is a “drastic measure which should be employed with caution.” (Deyo, at p. 793.) “A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-80.) While the court has discretion to impose terminating sanctions, these sanctions “should be appropriate to the dereliction and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” (Deyo, at p. 793.) “[A] court is empowered to apply the ultimate sanction against a litigant who persists in the outright refusal to comply with his discovery obligations.” (Ibid.) Discovery sanctions are not to be imposed for punishment, but instead are used to encourage fair disclosure of discovery to prevent unfairness resulting from the lack of information. (See Midwife v. Bernal (1988) 203 Cal.App.3d 57, 64 [superseded on other grounds as stated in Kohan v. Cohan (1991) 229 Cal.App.3d 967, 971].)~~~~~

III. DISCUSSION

A. Judicial Notice

PMG's

unopposed request for judicial notice is GRANTED.

B. Analysis

Plaintiff moves the court for an order imposing terminating sanctions against Defendants. Plaintiff argues terminating sanctions are proper because Defendants indicated through counsel that they would not appear for deposition in violation of the court's July 21, 2026 order.[2]

The motion is meritorious as to PMG. PMG indicated to Plaintiff in advance of the deadline to comply with the court's July 21, 2026 order that they would not appear for deposition. There is nothing in PMG's opposition indicating any defendant appeared for deposition. PMG violated this court's order. The court finds this violation was willful. Further, trial is a month away. PMG has prevented Plaintiff from preparing her case for trial. Given this background, terminating sanctions are warranted.

The court reaches a different conclusion as to Vershinina and Vershinin. The parties spill much ink over whether the court has personal jurisdiction over the individual defendants and relatedly, whether Plaintiff should have served nonparty deposition subpoenas on the individual defendants. However, the parties fail to address the basics. Plaintiff seeks terminating sanctions. Such relief presupposes an existing pleading. But here, neither Vershinina nor Vershinin have answered the operative complaint. In other words, if the court were to grant the motion as to the individual defendants, there is no answer to strike. At this juncture, Plaintiff's recourse is to seek entry of default against individual defendants.

IV. CONCLUSION

Based on the foregoing, the motion for terminating sanctions is GRANTED IN PART. Defendant Prestige Media Group, Inc.'s Answer, filed on 3/14/2026, is STRICKEN.

The motion is DENIED as to Defendants Alexandra Vershinina and Sergey Vershinin.

Plaintiff is ordered to give notice.

Dated: August 14, 2026

Brock T.
Hammond

Judge of
the Superior Court

[1] The court exercises its discretion
to consider PMG's untimely opposition.
(Cal. R. Ct., rule 3.1300(d).)

[2] Plaintiff also moves for
terminating sanctions based on PMG's failure to provide alternate deposition
dates. However, Plaintiff points only to
a Notice of Outcome of Informal Discovery Conference prepared by Plaintiff. (See Notice of Outcome, 5/15/2025.) There is
no violation of a court order. Further, even if the Notice of Outcome can be
construed as a court order, the failure to provide deposition dates is not
sufficient basis to impose terminating sanctions.